

25VECV03787 25VECV03787

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-14

Motion: MOTION TO VACATE DISMISSAL AND REINSTATE ACTION

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Case Number: 25VECV03787 Hearing Date: September 14, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

KARINA KRUEGER,

Plaintiff,

vs.

MELROSE ARDEN, LLC; ACTION

APARTMENTS, L.P.; JACKA LLC; KAMBIZ BOUDAI;
JACK YODAI; and DOES 1 through 50, inclusive, Defendant.

Defendants.

CASE NO: 25VECV03787

[TENTATIVE]

ORDER RE:

MOTION

TO VACATE DISMISSAL AND REINSTATE ACTION

Dept. W

8:30 a.m.

September 14, 2026

[TENTATIVE] ORDER: The Court DENIES

Plaintiff's Motion to Vacate the March 13, 2026, dismissal of this action.

Background

Plaintiff

Karina Krueger filed this case on July 9, 2025. Plaintiff alleges thirty-eight causes of action, ranging from negligence, to forgery, to constructive eviction. To date, no Defendants have been served, and no actions have been taken in the case.

On March 13, 2026, this Court dismissed Plaintiff's claim for failure to prosecute after months of inaction.

On July 6, 2026.

Plaintiff moved to vacate the Court's dismissal and reinstate this action.

On July 30, 2026, the Court heard this motion. The Court continued the hearing due to the lack of proof of service.

Now, the Court once again hears this motion.

Discussion

Plaintiff moves this Court to vacate its March 13, 2026, order dismissing this case for failure to prosecute. (Mot. to Vacate, p. 3:13-16.)

i)

Background

The Court could not initially reach the merits of this motion, because Plaintiff had not filed a proof of service. The Court continued the hearing to

allow Plaintiff to file proof of service. (Minute Order, 7/30/26.) On August 11, 2026, Plaintiff filed proof of service of this motion. (Proof of Service, 8/11/26.) Thus, the Court will now hear the motion on the merits.

ii)

Untimely Opposition

The Court also notes that on September 11, 2026, Defendants in this case filed an Opposition to this motion. The Court understands that Defendant were not served until August 11, 2026. Thus, a late Opposition filing is understandable. However, a filing submitted one court day before the hearing on this motion is too untimely. Thus, the Court will not consider the Opposition.

iii)

Analysis

Under CCP § 473(b), “the court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect.” (CCP § 473(b).)

The crux of Plaintiff's argument is that the dismissal should be vacated because Plaintiff was hospitalized for multiple months due to a mental health condition and thus could not participate in this litigation. (Id. p. 5:6-20.) Plaintiff argues that her medical absence amounts to excusable neglect under CCP § 473(b). (Id. p. 5:1-5.) Plaintiff explains that she was hospitalized on two separate occasions. First, she was admitted to the Southern California Hospital at Culver City P6 Psychiatric Unit for suicidal ideation and severe depression. (Krueger Decl. ¶ 4.) She was discharged on June 13, 2025. (Krueger Decl. Ex. A.) Then, on March 2, 2026 – less than two weeks before the OSC Re: dismissal – Plaintiff was once again hospitalized at Southern California Hospital at Culver City, P6 Psychiatric Unit, for major depressive disorder and suicidal ideation. (Krueger Decl. ¶ 7.) Additionally, Plaintiff explains that she lost access to stable housing in early 2025. (Id. ¶ 6.) Plaintiff argues that, taken together, these circumstances amount to excusable neglect.

California case law states that excusable neglect under CCP § 473(b) is when, “a reasonably prudent person under the same or similar circumstances” might have made the same error. (Bettencourt v. Los Rios Community College District (1986) 42 Cal.3d 270,

276.) Here, the Court sympathizes deeply with Plaintiff's situation. She has spent the last year and a half dealing with serious mental health issues, which were almost certainly magnified by her insecure housing situation. It certainly cannot be easy to litigate a case pro-per while also dealing with these problems.

However, the Court does not believe that the procedural history of this case supports a finding of excusable neglect. First, Plaintiff's initial hospitalization took place on June 6, 2025. (Krueger Decl. ¶ 4.) She was discharged a week later. However, Plaintiff did not file this suit until July 13, 2025. (Compl. p. 1.) Thus, this first incapacitation occurred before the suit was filed.

Plaintiff's second hospitalization occurred on March 6, 2026. (Krueger Decl. Ex. B.) She was discharged the same day. (Ibid.) The dismissal hearing for this case occurred on week later, on March 13, 2026. (Minute Order, 3/13/26.) Thus, Plaintiff was not physically incapacitated for any serious length of time during the lifespan of this case.

Additionally, neither the first nor second hospitalization explain Plaintiff's inaction during the eight months this case was pending. Plaintiff asserts that this inaction was due to her lack of a reliable mailing address, not indifferent. (Mot. to Vacate, p. 5:15-17.) While housing insecurity would certainly hinder a self-represented plaintiff's ability to litigate a case, it does not explain the total inaction present in the instant case. Plaintiff's case was dismissed in March of 2026 – after eight months had passed without proof that any Defendant had been served. Moreover, Plaintiff states that she did not learn her case had been dismissed until June 29, 2026. (Mot. to Vacate, p. 5:1.) Thus, Plaintiff did not check in on her own case for at least three and a half months. These facts suggest a level of neglect that is not excusable, even when factoring in Plaintiff's mental health and housing struggles.

For these reasons, the Court DENIES Plaintiff's Motion to Vacate the March 13, 2026, dismissal.

Conclusion

The Court DENIES Plaintiff's Motion to Vacate the March 13, 2026, dismissal of this action.

IT

IS SO ORDERED, Defendants TO GIVE NOTICE.

September 14, 2026

Judge of the Superior Court